

		all damages caused thereby.” (<i>Id.</i> at pp. 323-324 [internal quotation marks and citations omitted].) The fifth cause of action alleges LaCilento colluded with opposing counsel to “rig” the Underlying Action and “judicially kidnap [Plaintiff’s] 10-year old boy.” (FAC ¶ 83.) Counsel agreed LaCilento “would do a lousy job representing [Plaintiff]” and “that the putative father would be awarded sole and exclusive custody.” (<i>Id.</i> at ¶ 84.) As discussed above, the underlying torts of legal malpractice and fraud have not been adequately pled as to LaCilento. The demurrer is sustained as to the fifth cause of action. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve within 15 days of service of the notice of ruling. Defendant LaCilento to give notice. <u>Motion to Strike Portions of First Amended Complaint</u> Defendant Arthur J. LaCilento’s motion to strike portions of Plaintiff Nicole Dodson’s First Amended Complaint (“FAC”) is DENIED as moot. In light of the court’s concurrent ruling regarding LaCilento’s demurrer, the motion to strike is denied as moot. The Case Management Conference is continued to November 19, 2026, at 09:00 am in Department C10. Defendant LaCilento to give notice.
7	Ketzel vs. Laguna Beach Police Department	Defendant City of Laguna Beach moves for summary judgment on the Complaint of Plaintiff Hunter Ketzel. For the following reasons, the motion is DENIED. The court OVERRULES Defendant City’s evidentiary objection nos. 3, 6, and 7 to the Ketzel Declaration. The court does not rule on the remainder of objections asserted by Defendant City or Plaintiff, as they are not material to the disposition of this motion. (Code Civ. Proc., § 437c(q).) <u>Standard on MSJ</u> Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its burden on summary judgment by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff’s causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder</i>